



Title V Operating Permit Application Form

This form must be included with any application submittal to the Title V Operating Permit Unit

Title V Operating
Permit Number:

95OPBO082

Plant AIRS ID
Number:

013 - 0003

1. Instructions

Included on the Colorado Air Pollution Control Division Website is an instruction sheet (Form OP-50A) for this application form. Refer to the instruction sheet or contact the Division with questions. Attach a cover letter describing the purpose of the application package if more room is needed. Any form with missing information may be determined administratively incomplete and may result in inability to grant the application shield of Regulation No. 3, Part C, Section II.B. **Note that if using copy and paste; the applicant must paste as plain text. See "General Instructions" document for more details.**

2. Permit Application Type (check all that apply)

☐	Initial	☐	Renewal - Identify any requested changes below or in a cover letter.
☐	Significant Modification	☐	Administrative Modification (e.g. transfer of ownership, correct typographical error, etc.)
☐	Minor Modification - The Minor Modification worksheet (Form OP-201) must also be completed if a source wishes to use the procedures under Colorado Regulation No. 3, Part C, Section X.		
☐	Notification of Construction Permit Exempt Unit (APCD PS Memo 09-01, Scenario #7)	☐	Contact Update (Responsible Official, Permit Contact, and/or Billing Contact)
☐	Supplemental Information (describe): Click here to enter text.		
☒	Other (describe): RO and Permit Contact UPDATE		

3. General Description - Include brief description describing the purpose of the application package. If more detail is needed, provide in cover letter.

General Description of package	Change of Contact Update - Responsible Official and Permit Contact
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4. Forms Included in the Submittal - Check the forms that will be submitted with the application. Refer to Section 5.D for submittal instructions. Also included on the Division webpage is a guidance document labeled "Operating Permit Form Applicability Matrix" for more direction on which forms to include to comprise a complete application.

☒ OP-50 Application ☒ OP-100 Facility Identification ☐ OP-101 Site Information ☐ OP-102 Plant Wide Criteria Emissions ☐ OP-103 Plant Wide HAP Emissions ☐ OP-104 Permit Shield, Quantity: <i>Number</i> ☐ OP-105 Insignificant Activities ☐ OP-201 Minor Modification ☐ OP-202 Oil and Gas ☐ OP-202.1 Additional Storage Vessels, Quantity: <i>Number</i> ☐ OP-202.2 Additional Dehydrators, Quantity: <i>Number</i> ☐ OP-202.3 Additional SI Engines, Quantity: <i>Number</i> ☐ OP-202.4 Additional CI Engines, Quantity: <i>Number</i> ☐ OP-202.5 Additional Fugitive Emissions, Quantity: <i>Number</i> ☐ OP-202.6 Additional Sweetening Units, Quantity: <i>Number</i> ☐ OP-202.7 Additional Combustion, Quantity: <i>Number</i> ☐ OP-203 CAM, Quantity: <i>Number</i>	☐ OP-300 General Emission Unit, Quantity: <i>Number</i> ☐ OP-301 Boiler, Furnace, and Process Heater, Quantity: <i>Number</i> ☐ OP-302 Engine, Quantity: <i>Number</i> ☐ OP-303 Tanks, Quantity: <i>Number</i> ☐ OP-304 Turbine, Quantity: <i>Number</i> ☐ OP-305 Coating, Painting, Fiberglass, and Solvent Use, Quantity: <i>Number</i> ☐ OP-306 Dehydrator, Quantity: <i>Number</i> ☐ OP-307 Amine, Quantity: <i>Number</i> ☐ OP-308 Liquid Loadout, Quantity: <i>Number</i> ☐ OP-309 Fugitive VOC, Quantity: <i>Number</i> ☐ OP-310 Fugitive Particulate Matter, Quantity: <i>Number</i> ☐ OP-311 Incinerator, Quantity: <i>Number</i> ☐ OP-312 Kiln, Quantity: <i>Number</i> ☐ OP-313 Landfill ☐ OP-314 Separator and Natural Gas Venting, Quantity: <i>Number</i> ☐ OP-315 Routine or Predictable Emissions ☐ OP-315.1 Routine or Predictable Emissions, Quantity: <i>Number</i> ☐ OP-400 Compliance and Monitoring (Note that each OP-300 series form must have an corresponding OP-400 form), Quantity: <i>Number</i>
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5. Additional Information**A. Initial and Renewal Applications**

☐ Check this box if you are submitting an initial or renewal application. For all other application types, proceed to Section 5.B.

If you are submitting an initial or renewal application, provide the application due date. See Colorado PS-Memo 09-01 and PS Memo 22-01 for help with Title V Operating Permit application due dates.

Application Due Date: [Click here to enter text.](#)

Basis for Application Due Date (Initial Permits Only): [Click here to enter text.](#)

B. APEN Attachments

New/revised APENs are required if the facility is requesting a modification that requires a new APEN or changes information on a previously submitted APEN. Note that as of the updates made to Colorado Regulation No. 3 effective February 14, 2021, APEN copies are no longer required to be submitted with applications.

☐ New or revised APENs have been included with this submittal (filing fees must be included).





C. Confidential/Trade Secret Information

Check the following box if any confidential/trade secret information has been submitted with this application. The pages including confidential information must clearly be labeled as confidential.

See PS Memo 98-01 for acceptable confidential information submittals.

☐ This application includes confidential information on the following pages: [Click here to enter text.](#)

D. Submittal

The Division is requiring one electronic copy submittal emailed to the Air Pollution Control Division to cdphe_apcd_title_V@state.co.us. The date received by the Division will be the date the complete electronic submittal is received with signatures as stated in (1) below. The submittal must contain the following:

1. The source must submit a complete PDF copy of the full application including all signature pages which shall contain either digital signatures or a scanned ink signature.
2. Forms must also be submitted individually in word format (either .doc or .docx)

For electronic submittals, it is suggested that the permittee place multiple files in a compressed zip file before attaching to the email, use optimize/enhance tools in Adobe to reduce size of pdf files, or send multiple emails if there are problems with file sizes. If a source is not able to complete an electronic application as stated above, the permittee should contact the Division at cdphe_apcd_title_V@state.co.us to determine how to submit the application.

Included on the APCD website is a sample Title V Initial application (for an oil and gas exploration and production facility) and a general instruction document for using the Title V forms. Reference either of these documents for further guidance and examples of a complete submittal.

[UPDATE] Note that as of April 2023, The Division is no longer requiring hardcopy submittals of the Title V application forms.

E. Oil and Gas Sources

If this facility is associated with Oil & Gas activities, Form OP-202 must be completed if the facility is submitting an initial application or the facility is requesting changes to oil and gas equipment and must be submitted for the application to be considered complete. Oil and Gas SIC codes include, but are not limited to, 1311, 1321, and 4922.

☐ Form OP-202 has been included with this application.

☒ This facility is not an oil and gas facility, and/or the facility is not requesting any changes to the oil and gas equipment.

F. Modeling

If an emission unit will have to go through modeling as part of a permit action, APCD-114 and the APCD Permit Modeling Unit's (PMU) determination must be completed and attached to the application. For information about the modeling process, see the page titled "Air Quality Modeling Guidance for Permits" on the Division webpage.

☐ Form APCD-114 along with PMU's Determination has been completed and attached.

☒ This facility did not trigger modeling requirements.

6. Signature of Responsible Official

A. Statement of Completeness

☒ I have reviewed this application in its entirety and, based on information and belief formed after reasonable inquiry, I certify that the statements and information contained in this application are true, accurate and complete.

B. Certification of Facility Compliance Status With Federal and State Enforceable Conditions

☒ I certify that the facility described in this air pollution permit application is fully in compliance with





all applicable requirements, including compliance certification requirements and any applicable compliance assurance monitoring.

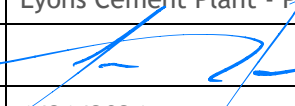
☐ I certify that the facility described in this air pollution permit application is fully in compliance with all applicable requirements, except for the following emissions unit(s) identified below:
[Click here to enter text.](#)

C. Certification of Facility Compliance Status With State-Only Enforceable Conditions

☒ I certify that the facility described in this air pollution permit application is fully in compliance with all applicable requirements.

☐ I certify that the facility described in this air pollution permit application is fully in compliance with all applicable requirements, except for the following emissions unit(s) identified below:
[Click here to enter text.](#)

WARNING: Any person who knowingly, as defined in § 18-1-501(6), C.R.S., makes any false material statement, representation, or certification in, or omits material information from this application is guilty of a misdemeanor and may be punished in accordance with the provisions of § 25-7 122.1, C.R.S.

Responsible Official Name or Other ¹	Erasmo "Erik" Estrada Tovar
Title	Lyons Cement Plant - Plant Manager
Signature ²	
Date	1/31/2024

¹For the following applications, a signature of a Legally Authorized Person (not a vendor or consultant) is acceptable: Notification of Construction Permit Exempt Unit, Billing contact update, Responsible Official update, and Supplemental Information submittal. **For these application types, a Legally Authorized Person must only certify with Section 6.A (6.B and 6.C certifications are not needed).**

²Either a wet or electronic signature is required here.



General Facility Information Form

Title V Operating
Permit Number:

950PBO082

Plant AIRS ID
Number:

013 - 0003

1. Instructions

Included on the Colorado Air Pollution Control Website is an instruction sheet (Form OP-100A) for this application form. Refer to the instruction sheet or contact the Division with questions. Any form with missing information may be determined administratively incomplete and may result in inability to grant the application shield of Regulation No. 3, Part C, Section II.B. **Note that if using copy and paste; the applicant must paste as plain text. See "General Instructions" document for more details.**

2. Facility Name and Physical Address

Company Name	CEMEX Constructions Materials South, LLC
Facility Name	Lyons Cement Plant
Address 1	5134 Ute Highway
Address 2	Enter facility address line 2, if applicable.
City	Longmont
County	Boulder
State and Zip Code	Colorado, 80503

3. Parent Company Name and Mailing Address

Name	CEMEX, Inc.
Address 1	10100 Katy Highway
Address 2	Suite 300
City	Houston
State and Zip Code	Texas 77043

4. Billing/Accounts Payable for Title V Operating Permit Fees

Invoices are issued quarterly to recover costs associated with processing Title V Operating Permit applications. The Division may send invoices via email and/or US Mail. Update the contact information immediately upon any change to avoid additional penalties due to nonpayment. Billing contact information for other Division fees can be updated via an Air Pollution Emission Notice (for hourly fees associated with construction permit processing) or by following the instructions on the annual emission fee invoice for fees associated with annual pollutant emissions.

Contact Name	Amy Hatch
Title	Administrative Assistant
Email	amy.hatch@cemex.com
Telephone	(303) 823-2105
Address	5134 Ute Highway, Longmont, CO 80503





5. Responsible Official - See instruction sheet for information on Responsible Official requirements.

Name	Erasmio "Erik" Estrada Tovar
Title	Plant Manager
Email	erik.estrada@cemex.com
Telephone	(720) 534-7346
Address	5134 Ute Highway, Longmont, CO 80503

6. Permit Contact Person

Name	Natalie Thompson
Title	Environmental Manager
Email	natalie.thompson@cemex.com
Telephone	(708) 571-9148
Address	5134 Ute Highway, Longmont, CO 80503

7. Correspondence Options - Select the correspondence option associated with the processing of the Title V Operating Permit for the facility.

- ☐ Permit Contact Person Only
☐ Copy Responsible Official (formal letters only)
☒ Copy Responsible Official (include all files, draft permits, etc.)

8. Facility Information

A. Business Activity of facility:	Cement Production		
B. SIC Code:	3241	C. NAICS Code:	327310
D. Is the facility located in a nonattainment area (NAA)?	☒ Yes ☐ No	E. If yes on D, check the designated nonattainment pollutant(s)	☐ CO ☒ Ozone ☐ PM ₁₀ ☐ Other (specify): Click here to enter text. If yes for ozone, is this facility located in the northern portion of Weld County included in the 2015 8-hour O ₃ NAAQS as defined in Colorado Regulation 7, Part A? ☐ Yes ☒ No
F. Is this facility subject to the provisions governing prevention of accidental release of hazardous air pollutants contained in section 112(r)(7) of the Clean Air Act?:			☐ Yes ☒ No If yes, has a RMP been registered? ☐ Yes ☐ No
G. Is the facility subject to the Acid Rain Provisions of Title	☐ Yes ☒ No	H. If yes on G, is a complete new or renewal Acid	☐ Yes ☐ No



[illegible]

**10. Prevention of Significant Deterioration (PSD) and Non-Attainment New Source Review (NANSR)**

- | | |
|--|---|
| A. Is this facility a listed source for the purposes of Prevention of Significant Deterioration (PSD) for which the source would be considered major at 100 tons per year? (See Colorado Regulation 3 Part A Section II.A.25.a.(i)) | ☒ Yes ☐ No
If yes, describe: Portland Cement Plant |
| B. Is this facility a major stationary source for the purposes of the Prevention of Significant Deterioration (PSD) program? (Potential to Emit $\geq$ 250 Tons/Year or 100 Tons/Year if listed source) | ☒ Yes ☐ No
If yes, enter pollutants: PM, PM ₁₀ , SO ₂ , NOX, CO |
| C. Is this facility a major stationary source for the purposes of the Non-Attainment New Source Review (NANSR) program? (Potential to Emit above thresholds listed in Colorado Regulation 3, Part D, Section II.A.25.b) | ☒ Yes ☐ No
If yes, enter pollutants: VOC, NOX |

11. Reporting

Facilities are required to submit semiannual Monitoring and Deviation reports and annual Compliance Certifications (these reports are included as appendices in the operating permit). For the calendar year reporting period (see below), reports are required by the end of the month following the end of the semiannual or annual periods respectively; e.g., Monitoring and Deviation reports would be due on July 31 and January 31, and the Compliance Certification would be due on January 31. The applicant may elect to alter the reporting date ranges below. Note that the requested reporting periods must be every 6 months for the Monitoring and Deviation report, and every 12 months for the compliance certification.

☐ *Calendar year periods as follows:

Monitoring and Deviation report: January 1 - June 30, July 1 - December 31

Compliance Certifications: January 1 - December 31

☒ Reporting periods will align with issued permit

i.e. if the operating permit is issued in May, annual compliance period will be May 1 - April 30

☐ *Alternate reporting period (specify): [Click here to enter text.](#)

*Note that if the applicant selects one of these options and the permit is issued on any month other than January or July, there will be shortened reporting periods to "catch up" to the default period. The applicant will be informed of any shortened periods with the issuance letter.

